

Code of Civil Procedure (CPC)

THE CODE OF CIVIL PROCEDURE (CPC), 1908

Section 96. Appeal from original decree.

(1) Save where otherwise expressly provided in the body of this Code or by any other law for the time being in force, an appeal shall lie from every decree passed by any Court exercising original jurisdiction to the Court authorized to hear appeals from the decisions of such Court.

Order 39, Rule 1. Cases in which temporary injunction may be granted.

Where in any suit it is proved by affidavit or otherwise: (a) that any property in dispute in a suit is in danger of being wasted, damaged or alienated by any party to the suit, or wrongfully sold in execution of a decree, or (b) that the defendant threatens, or intends, to remove or dispose of his property with intent to defraud his creditors, the Court may by order grant a temporary injunction to restrain such act.

Order 39, Rule 2. Injunction to restrain repetition or continuance of breach.

In any suit for restraining the defendant from committing a breach of contract or other injury of any kind, whether compensation is claimed in the suit or not, the plaintiff may, at any time after the commencement of the suit, apply to the Court for a temporary injunction to restrain the defendant.

Roman Urdu Summary: CPC Section 96 ke tehat civil court ke faislay/decrees ke khilaf appeal daikhli ja sakti hai. Order 39 Rules 1 & 2 ke tehat court temporary injunction (stay order/intekhabī Hukam-e-Imtinaae) jari kar sakti hai taake dispute property ko nuqsan se bachaya ja sake.